Anti-Corruption measures

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Introduction

✓ **Corruption** refers to dishonest or fraudulent behaviour by individuals in positions of power.

Measures for Prevention of Corruption in India:

✓ **Legislative Measures**

✓ **Institutional Measures**

✓ **Technological Measures**

✓ **Promoting Transparency and Accountability**

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⚖️ Lokpal and Lokayukta

Origin	Concept of Ombudsman originated in Sweden (1809).
Coined Term	Dr. L. M. Singhvi coined the terms Lokpal and Lokayukta in 1963. Lokpal Bill, 1968: Passed in Lok Sabha but lapsed due to dissolution; reintroduced multiple times but failed.
First Administrative Reforms Commission (1966)	Recommended setting up Lokpal and Lokayuktas.
NCRWC (2002) and 2nd ARC (2005)	Again recommended Lokpal and Lokayukta
Again recommended Lokpal and Lokayukta	• • finally passed in 2013.

Selection Committee

- Prime Minister (Chairperson)
- Speaker of Lok Sabha
- Leader of Opposition (or largest opposition party leader)
- Chief Justice of India (or nominated Judge)
- One eminent jurist nominated by the President.

Composition	• **Multi-member body:** ○ **1 Chairperson** ○ **Maximum 8 Members** • **Chairperson:** ○ **Should be either:** ▪ **Former Chief Justice of India, or** ▪ **Former Judge of Supreme Court, or** ▪ **Eminent person with at least 25 years' expertise in anti-corruption policy, public administration, vigilance, finance (including insurance and banking), law, and management.**
Members	○ Half must be **judicial members.** ○ Minimum 50% should be from **SC/ST/OBC/Minorities and women.** ○ **Judicial Member:** Former Judge of Supreme Court or Former Chief Justice of a High Court. ○ **Non-judicial Member:** Eminent person with at least 25 years' expertise in related fields.
Tenure	Term: 5 years or until attaining the age of 70 years, whichever is earlier.

Jurisdiction

- Prime Minister (with certain restrictions).
- Ministers and Members of Parliament (with limitations for parliamentary proceedings).
- Groups A, B, C, and D officers and officials of Central Government.
- Directors, managers, secretaries of societies/bodies funded/controlled by the Central Government.

Powers and Limitations

Powers

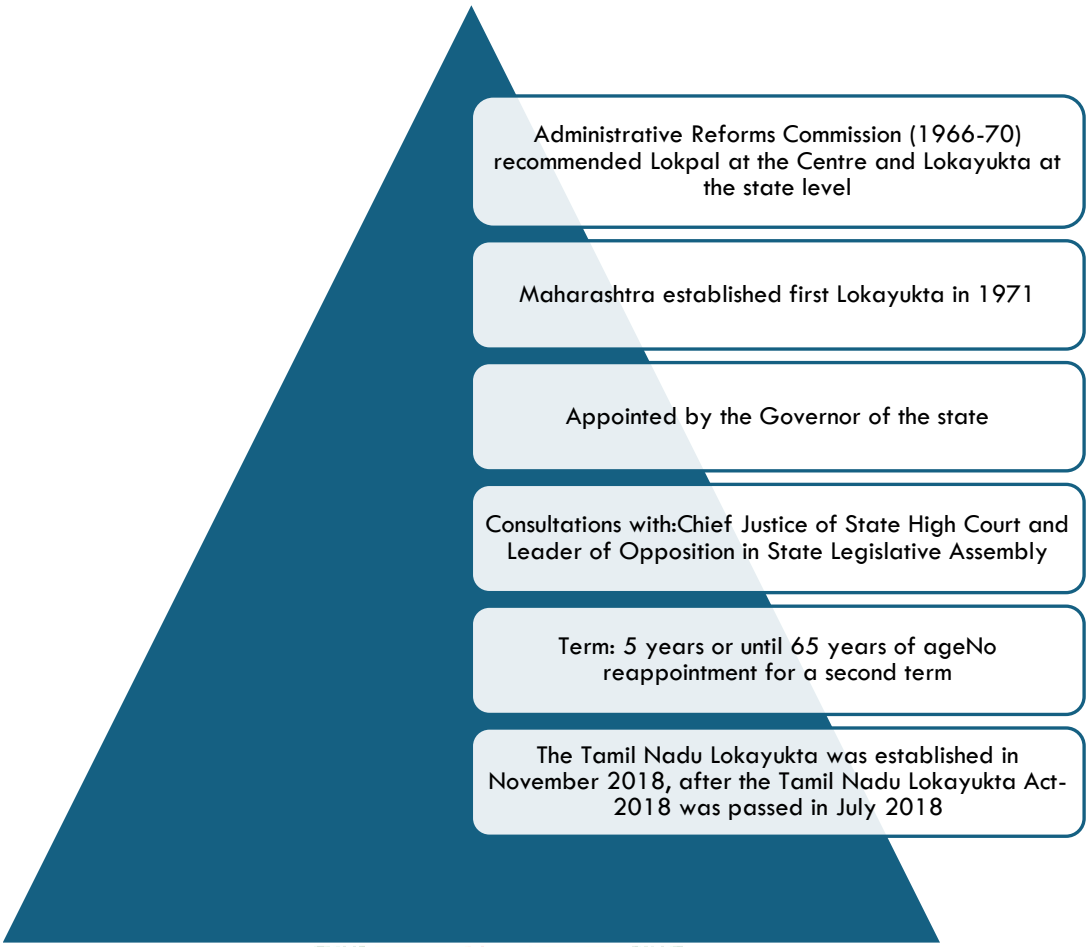
- **Superintendence and Direction** over CBI.
  - CBI officer handling a case referred by Lokpal cannot be transferred without Lokpal's approval.
- **Inquiry Wing:**
  - Vested with powers of a **civil court.**
- **Confiscation Powers:**
  - Confiscate assets/proceeds of corruption in special circumstances.
- **Preventive Powers:**
  - Recommend transfer or suspension of corrupt public servants.
  - Give directions to prevent destruction of records.
- **Asset Disclosure:**
  - Public officials must declare assets and liabilities of themselves and their dependents.

Limitations

- **Delay in Appointment:**
  - No Lokpal appointed even after 5 years of passing the Act (as of early years after enactment).
- **Whistleblower Protection:**
  - Weak; inquiry can be initiated against the complainant if allegations are not proved.
- **Exclusion of Judiciary:**
  - Judiciary is not covered under Lokpal jurisdiction.
- **No Constitutional Status:**
  - Lokpal lacks constitutional backing and clear appellate provisions.
- **Discretion Left to States:**
  - Appointment and functioning of Lokayuktas are left to states.
- **CBI Autonomy:**
  - Slight improvement, but not complete independence ensured.
- **Limitation Period:**

Complaints must be made within 7 years of the alleged corruption act.

Lokayuktha



Important Facts:

International Anti-Corruption Day – December 9

Corruption Perceptions Index (CPI):

Published by: Transparency International

Enforcement Mechanisms in India:

- **Central Vigilance Commission (CVC):** Supervises anti-corruption measures and promotes transparency.
- **Central Bureau of Investigation (CBI):** Handles high-profile corruption cases.

Central Vigilance Commission (CVC)

Evolution of Central Vigilance Commission

Establishment:

Set up in 1964 by an *executive resolution* of the Central Government.

Recommendation:

Based on the recommendations of the **Santhanam Committee** on Prevention of Corruption (1962–64).

Initial Status:

Initially neither a *constitutional* body nor a *statutory* body.

Statutory Recognition:

Became a *statutory body* through the **Central Vigilance Commission Act, 2003.**

- **Structure**:
  - A *multi-member body* comprising:
    - **Central Vigilance Commissioner** (Chairperson)
    - Not more than **two Vigilance Commissioners**.
- **Appointment**:
  - Appointed by the **President of India** by warrant under his hand and seal.
  - Based on the recommendation of a three-member committee:
    - Prime Minister (Chairperson)
    - Union Minister of Home Affairs
    - Leader of Opposition in the Lok Sabha
- **Tenure and Age Limit**:
  - Term: *4 years* or until attaining *65 years* of age, whichever is earlier.



Anti-Corruption Laws and Policies in India:

- **Prevention of Corruption Act, 1988:** Defines corruption and penalties for public servants and bribe givers.
- **Bharatiya Nyaya Sanhita, 2023:** Replaces the IPC, modernizes provisions related to corruption and bribery.
- **Lokpal and Lokayuktas Act, 2013:** Ensures public accountability by addressing corruption grievances.
- **Whistleblowers Protection Act, 2014:** Promotes transparency by safeguarding whistleblowers.
- **Other Legal Measures:**
  - Prevention of Money Laundering Act, 2002
  - Benami Transactions Act, 1988
  - Black Money and Imposition of Tax Act, 2015